

Sonu Kanwar D/O Shri Chatar Singh vs State Of Rajasthan on 18 December, 2023

Author: Mahendar Kumar Goyal

Bench: Mahendar Kumar Goyal

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Criminal Writ Petition No. 406/2023

Sonu Kanwar D/o Shri Chatar Singh & Anr.

----Petitioners

Versus

State Of Rajasthan & Ors.

---Respondents

For Petitioner(s) : Mr. T.C. Swami for Mr. Rajesh Kala For Respondent(s) : Mr. Riyasat Ali, P.P. For Respondents Mr. Shishram Saini HON'BLE MR. JUSTICE MAHENDAR KUMAR GOYAL Order 18/12/2023 This criminal writ petition has been filed seeking police protection.

Learned counsel for the petitioners submits that since, the petitioner No.1 is in "live-in-relationship" with the petitioner No.2 against the wishes of her husband, the respondent No.7 and his family members, they are receiving threatening from them to their life and liberty.

Per contra, learned counsel for the respondents No.7 to 14 submits that they have never threatened the petitioners. He further submits that as a matter of fact, the respondent No.7 has already filed a divorce petition against the petitioner No.1 wherein, she has not put in appearance despite service.

Learned counsel for the petitioners submits that the petitioner No.1 is ready and willing to part her ways from the respondent No.7. He further submits that she is ready to move an (2 of 2) [CRLW-406/2023] application before the learned Family Court requesting for treating the divorce petition filed by the respondent No.7 as a petition under Section 13-B of the Hindu Marriage Act, 1955. He prays for and is granted three weeks' time to do so.

In view thereof, list the matter on 16.01.2024 as prayed jointly.

Interim order dated 28.02.2023 to continue till the next date.

(MAHENDAR KUMAR GOYAL),J Manish/1326 Powered by TCPDF (www.tcpdf.org)